

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kate Akerly	Team: Team # 1	CCRB Case #: 200714620	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 10/05/2007 6:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/5/2009	Precinct: 70		
Date/Time CV Reported Sat, 10/06/2007 11:08 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 10/06/2007 11:08 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Larry Burnham	00000	897100	NARCBBS
2. An officer			NARCBBS
3. POF Megan Omalley	06355	930859	NARCBBS
4. DT2 Charles Martello	06303	903165	NARCBBS
5. Officers			NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Hector Rodriguez	05980	898408	NARCBBS
2. POF Teresa Reams	03573	902255	067 PCT
3. DT2 Joey Morales	06018	884394	NARCBBS
4. SGT Dennis Bowen	02541	917047	NARCBBS
5. DT3 William Martin	04854	925676	NARCBBS
6. DT2 Agapito Soler	05009	898560	NARCBBS
7. DT3 James Donahue	06707	915633	INT EPU
8. DT3 Derek Andreone	04163	921917	NARCBBS
9. DT3 Jeremy Demarco	29303	930033	NARCBBS
10. DT3 Oghenevigh Okrokoto	07008	927291	NARCBBS
11. POM Rashaan Neubia			NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . LT Larry Burnham	Abuse: Lt. Larry Burnham authorized the entry of § 87(2)(b) in Brooklyn.	A . Exonerated
B . An officer	Off. Language: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon her sex.	B . Unfounded
C . DT2 Charles Martello	Discourtesy: At § 87(2)(b) in Brooklyn, Det. Charles Martello spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	C . Unfounded

Officer(s)	Allegation	Investigator Recommendation
D . An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	D . Officer(s) Unidentified
E . DT2 Charles Martello	Force: At § 87(2)(b) in Brooklyn, Det. Charles Martello used physical force against § 87(2)(b)	E . Unfounded
F . DT2 Charles Martello	Force: At § 87(2)(b) in Brooklyn, Det. Charles Martello used physical force against § 87(2)(b)	F . Unfounded
G . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b)'s property.	G . Officer(s) Unidentified
H . POF Megan Omalley	Discourtesy: At § 87(2)(b) in Brooklyn, PO Megan Omalley spoke obscenely and/or rudely to § 87(2)(b)	H . Unfounded
I . POF Megan Omalley	Force: At § 87(2)(b) in Brooklyn, PO Megan Omalley used physical force against § 87(2)(b)	I . Unfounded
J . Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	J . Unfounded
K . An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)	K . Unfounded
L . An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer strip-searched § 87(2)(b)	L . Unfounded
M . An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer refused to provide his name and shield number to § 87(2)(b)	M . Officer(s) Unidentified
N . An officer	Off. Language: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon race.	N . Officer(s) Unidentified
O . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b)'s property.	O . Officer(s) Unidentified
P . An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer did not obtain medical treatment for § 87(2)(b)	P . Officer(s) Unidentified
Q . LT Larry Burnham	Discourtesy: At § 87(2)(b) in Brooklyn, Lt. Larry Burnham spoke obscenely and/or rudely to § 87(2)(b)	Q . Unfounded
R . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers refused to provide their names and/or shield numbers to § 87(2)(b)	R . Officer(s) Unidentified
S . LT Larry Burnham	Abuse: At the 67th Precinct stationhouse, Lt. Larry Burnham authorized the strip searches of § 87(2)(b) and § 87(2)(b)	S . Exonerated

Synopsis

On October 6, 2007, § 87(2)(b) of § 87(2)(b) in Brooklyn filed the following complaint with the CCRB. On October 5, 2007, at approximately 6:30am, § 87(2)(b) was home with numerous other family members that also reside in the location, including § 87(2)(b)'s fiancée; § 87(2)(b)'s sister; § 87(2)(b)'s daughter; and § 87(2)(b)'s brother, who resides in the basement. Officers, supervised by Lt. Larry Burnham of Narcotics Borough Brooklyn South, were executing a search warrant on the home and in doing so rammed the front door down **[Allegation A]**. While the officers were entering the home, § 87(2)(b) alleged that an unidentified male officer called her a “bitch” through the front door **[Allegation B]**. Det. Charles Martello, of Narcotics Borough Brooklyn South, ran up the stairs to the second floor of the home. § 87(2)(b) and § 87(2)(b) were standing in the second-floor hallway screaming. Det. Martello allegedly stated, “Shut up, black bitch. All you black bitches get the fuck back in your rooms.” **[Allegation C]** An unidentified officer said, “These women are all screaming, I don’t know why they can’t shut the fuck up.” **[Allegation D]**

§ 87(2)(b) alleged that Det. Martello charged into her, punched her in the stomach, and spit in her mouth and on her face **[Allegation E]**. § 87(2)(b) began to urinate and vomit on herself because of being punched. She allegedly urinated on Det. Martello because he was still on top of her. Det. Martello allegedly said, “Oh, you fucking bitch, you pissed on me.” § 87(2)(b) was standing in the hallway handcuffed and began talking to § 87(2)(b). Det. Martello allegedly turned around and said, “Mind your fucking business, you black bitch.” § 87(2)(b) said, “I’m just about the same complexion as you, so how are you gonna call me black? You don’t know what I am.” Det. Martello allegedly grabbed § 87(2)(b) threw her down, and kicked her with his right foot **[Allegation F]**.

§ 87(2)(b) alleged that while officers searched her bedroom they damaged a dresser drawer **[Allegation G]**. § 87(2)(b) and § 87(2)(b) were handcuffed. PO Megan O’Malley, of Narcotics Borough Brooklyn South was requested upstairs in order to search all of the female occupants. At some point, § 87(2)(b) was looking around her room for her glasses when PO O’Malley allegedly stated, “Now you have your fucking glasses.” **[Allegation H]** § 87(2)(b) asked PO O’Malley to loosen her handcuffs and PO O’Malley said, “Fuck you. I just had about enough of your shit.” § 87(2)(b) started to walk away and PO O’Malley asked her where she was going. § 87(2)(b) told her that she was going to get her cane. PO O’Malley said, “Mother fucker, you’re gonna learn how to walk without that fucking cane today.” PO O’Malley allegedly pushed § 87(2)(b)'s right shoulder, causing § 87(2)(b) to almost fall over, but Det. Joey Morales, of Narcotics Borough Brooklyn South, caught her arm before she fell **[Allegation I]**.

While some officers went to the second floor, others went down to the basement where § 87(2)(b) resides. § 87(2)(b) heard the noise and began to walk up the steps to the ground floor. § 87(2)(b) alleged that officers pushed him down the stairs and stepped on his legs **[Allegation J]**. § 87(2)(b) alleged that he informed the officers he was going to have a stroke and an unidentified officer responded, “Shut the fuck up!” **[Allegation K]**. One of the officers instructed § 87(2)(b) to pull his pants down and bend over, which § 87(2)(b) complied with **[Allegation L]**.

During the incident, § 87(2)(b) asked an unidentified officer for his name and badge number. The officer said, “What do you want?” The officer then left the area and did not return for the rest of the incident. **[Allegation M]**. The officers brought § 87(2)(b) into the dining room and questioned her. An unidentified officer saw a letter on the kitchen table that was addressed to § 87(2)(b) § 87(2)(b) who also resides at the home, from his probation officer. The officer allegedly said, “Oh, I know this kid. I hate this black motherfucker. I’m gonna get him.” **[Allegation N]**. Officers searched the home and § 87(2)(b) alleged that officers tore down her drapes and tore down wood paneling that hung over her living room, on the ceiling **[Allegation O]**.

All of the occupants were placed into vehicles to be transported to the 67th Precinct stationhouse. While § 87(2)(b) was outside, he asked an unidentified officer for an ambulance but the officer did not respond to his request **[Allegation P]**. Lt. Burnham was in the vehicle with § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) alleged that he stated, “We fucked up, we did not find anything in there.” [Allegation Q] § 87(2)(b) alleged that she asked a large group of officers for their names and badge numbers but they did not provide the information [Allegation R]. At the stationhouse, Lt. Burnham authorized the strip searches of § 87(2)(b) and § 87(2)(b) [Allegation S].

§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegations A be exonerated.** § 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **Allegations B, C, E, F, H, I, J, K, L, and Q be unfounded.** § 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations D, G, M, N, O, P, and R be closed as officers unidentified.** § 87(2)(g)
§ 87(2)(g) It is recommended that **Allegation S be exonerated.**

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on October 23, 2007 (encl. 11-11Q). She is a § 87(2)(b)-year-old black female, § 87(2)(b) with black hair, and brown eyes. § 87(2)(b)
§ 87(2)(b) provided an eight-page letter to the investigation that she wrote the day after the incident and also provided a narrative in the initial CCRB complaint report § 87(2)(g)
§ 87(2)(g)

On October 5, 2007, at approximately 6:15am, § 87(2)(b) was home and had awoken to use the bathroom. The individuals that live on the second floor of the home include § 87(2)(b) s fiancée; § 87(2)(b) s sister; § 87(2)(b) s daughter; § 87(2)(b) § 87(2)(b) s son. § 87(2)(b) s brother, lives in the basement of the home. Everyone was home except for § 87(2)(b) § 87(2)(b) heard some noise that sounded like tapping on the front door. The doorbell was not working because the electricity had been turned off for failure to pay the bill. § 87(2)(b) heard a loud booming noise and she exited the bathroom, peaked over the staircase from the second floor, which looks directly at the front door. She saw numerous officers hitting her front door. The officers also hit a glass panel connected to the front door, six to seven times, which eventually broke it. The officers came charging up the stairs, toward § 87(2)(b) who was still standing by the second-floor staircase.

§ 87(2)(b) told the officers that they had the wrong house. An officer, identified through the investigation as Det. Charles Martello, responded by saying, “Shut up black bitch. All you black bitches get the fuck back in your rooms.” § 87(2)(b) described Det. Martello as a uniformed white male, five feet, five inches tall, with a petite build and black hair. § 87(2)(b) tried to turn around to head towards her room but she could not move fast enough because she has arthritis and she normally uses a cane to assist her in walking. The officers never instructed her to get on the ground and they never verbally issued her any orders. Det. Martello charged into § 87(2)(b) punched her in the stomach, and spit in her mouth and on her face. § 87(2)(b) stated that Det. Martello started to hit her with his nightstick. When the undersigned investigator asked § 87(2)(b) which hand the officer punched her with she motioned that he body-slammed her with his left elbow and she clarified that he did not hit her with the nightstick but pushed the night stick into her right cheek. § 87(2)(b) fell backwards and her body was partially inside of her room and partially in the hallway. Det. Martello fell on top of her.

Later on in the interview, § 87(2)(b) said that Det. Martello pushed into her with his body and pressed his nightstick against her cheek, which made her fall over. § 87(2)(b) later stated that Det. Martello pushed his shield into her, gesturing for her to get into her room, and she fell over on a shopping cart that she had in her hallway. Det. Martello fell with her and was pushing his body weight into her stomach. § 87(2)(b) started saying, “What are you doing? Get off of me. He’s killing me, he’s killing me.” After Det. Martello punched § 87(2)(b) in the stomach she started to urinate. Det. Martello said, “I told you to get back into

your room you black bitch.” § 87(2)(b) started saying, “What are you doing to my aunt?” When § 87(2)(b) was urinating, Det. Martello said, “Oh, you fucking bitch, you pissed on me.” § 87(2)(b) said, “I should have pissed in your mouth like you spit in my mouth.” § 87(2)(b) said that she did not resist the officer in anyway.

§ 87(2)(b) began to vomit. Det. Martello tried to push himself off of § 87(2)(b) and § 87(2)(b) simultaneously pushed him. § 87(2)(b) did not receive any injuries or bruising from the interaction and sought no medical attention. At some point § 87(2)(b) saw § 87(2)(b) standing in the hallway already handcuffed. § 87(2)(b) said, “What are they doing?” § 87(2)(b) was also standing in the hallway handcuffed and said, “I don’t know.” Det. Martello turned around and said, “Mind your fucking business, you black bitch. § 87(2)(b) said, “I’m just about the same complexion as you, so how are you gonna call me black? You don’t know what I am.” Det. Martello grabbed § 87(2)(b) and threw her down and kicked her with his right foot. § 87(2)(b) later described the throw as “moving her around.” Even later in the interview, § 87(2)(b) said Det. Martello threw § 87(2)(b) by pushing her with his shield. § 87(2)(b) started screaming but she did not physically resist the officers. Det. Martello continued saying, “Shut the fuck up, black bitches. Black mother fucking bitches.” Det. Martello looked inside of § 87(2)(b)’s room and said, “She got all this fucking shit here.” § 87(2)(b) asked Det. Martello what his badge number was and Det. Martello ran down the stairs with a dog and said that he had to go to “hazardous” because she urinated on his leg.

An officer, identified through the investigation as Det. Charles Martello, went to open § 87(2)(b)’s room and it was locked. Det. Martello asked them whose room it was. § 87(2)(b) responded that it was her room and she told the officer that she had a key. Det. Martello responded, “We don’t need no mother fucking key, we’ll just kick it down.” Unidentified officers kicked the door down and started searching the room. § 87(2)(b) was in § 87(2)(b)’s bedroom during the entire incident. § 87(2)(b) told § 87(2)(b) that he got up and could hear what was happening but he just stayed in the room. The officers let her sit down in her room and Lt. Burnham and PO O’Malley entered the bedroom. § 87(2)(b) identified them by name from their badges. They asked her who owned the home and she told them that she did. § 87(2)(b) was looking on her bed for her glasses and PO O’Malley said, “Now you have your fucking glasses.”

§ 87(2)(b) was wearing pajamas, so PO O’Malley told her to get some clothes together to change. § 87(2)(b) told PO O’Malley that she takes a diuretic and she wears adult diapers when she leaves the house so § 87(2)(b) asked PO O’Malley to take out two diapers from a package in the bedroom. PO O’Malley took a handful of adult diapers and stuffed them in her coat. § 87(2)(b) asked her why she was taking them and PO O’Malley told § 87(2)(b) that her grandmother wears them. Lt. Burnham was in the bedroom still and § 87(2)(b) said that she was not going to change with him there, so PO O’Malley escorted § 87(2)(b) to the bathroom. PO O’Malley came into the bathroom and said, “Let me help you put your underwear on.” § 87(2)(b) said she did not need help and she pulled her underwear up. § 87(2)(b) was then ready to leave the bathroom when PO O’Malley said, “Aren’t you going to wash your hands?” § 87(2)(b) said, “For what!” PO O’Malley then said, “Aren’t you going to wash your fucking hands?” § 87(2)(b) said, “No.”

PO O’Malley handcuffed § 87(2)(b). § 87(2)(b) stated that she had arthritis in her hand and it swelled up because of the handcuffs. She did not have any photographs of the swelling and she did not go to the doctor. § 87(2)(b) asked her to loosen the handcuffs and PO O’Malley said, “Fuck you. I just had about enough of your shit.” § 87(2)(b) started to walk away and PO O’Malley asked her where she was going. § 87(2)(b) told her that she was going to get her cane. § 87(2)(b) told PO O’Malley that she has been using the cane for twelve years and does not go outside without it. PO O’Malley said, “Mother fucker, you’re gonna learn how to walk without that fucking cane today.” PO O’Malley did not allow § 87(2)(b) to get her cane. PO O’Malley then pushed § 87(2)(b)’s right shoulder, causing § 87(2)(b) to almost fall over, but Det. Joey Morales caught her arm before she fell. § 87(2)(b) identified Det. Morales by name from his badge. § 87(2)(b) said, “Oh shit, you could have killed me.” Det. Morales said to PO O’Malley, “You shouldn’t have done that.” Det. Morales helped her down the stairs. In the statement § 87(2)(b) provided in the initial CCRB complaint report she stated that she pretended herself from falling by grabbing on to the handrail on the stairs. She made no mention of Det. Morales.

§ 87(2)(b) was in the basement during the incident. He later informed § 87(2)(b) that officers beat him up, but she did not see this happen. During the incident, § 87(2)(b) asked an unidentified male officer, whom she was unable to describe, for his name and badge number. The officer said, "What do you want?" The officer then left the area and did not return for the rest of the incident. The officers brought her into the dining room and questioned her. An unidentified officer saw a letter on the kitchen table that was addressed to § 87(2)(b) from his probation officer. An unidentified officer then said, "Oh, I know this kid. I hate this black motherfucker. I'm gonna get him." The officer was described as a plainclothes white male, five feet, eight inches, with a slim build, with blonde hair and green eyes, wearing jeans and a yellow sweater. § 87(2)(b) believed his name started with a "B." During the search, officers tore down her drapes and pulled down her curtain rods. The officers also tore down some woodwork that hung over her living room, on the ceiling.

All of the occupants in the home were arrested and transported to the 67th Precinct stationhouse. The officers put everyone except § 87(2)(b) into Det. Morales' vehicle, which was a grey minivan. Lt. Burnham was driving the minivan and he was speaking to an unidentified officer in the passenger seat saying, "We fucked up, we did not find anything in there." Lt. Burnham told the officer that he did not want to take them to the 70th Precinct because he did not want to be embarrassed, so he told the officer that he was going to bring them to the 67th Precinct.

On October 23, 2007, § 87(2)(b) was shown two photo arrays of potential officers. In the first set, Photo 1 was a filler but § 87(2)(b) identified the officer as the officer that refused to provide his name and shield number. Photo 2 was Lt. Burnham and she identified him as the officer that wiped his boots on her bed. Photo 3 was a filler but § 87(2)(b) identified him as an officer that used profanity during the incident. Photo 4 was a filler but she identified him as being present during the incident. Photo 5 and 6 were fillers. In the second set, Photo 2 was a filler but § 87(2)(b) identified him as the officer that punched her and kicked § 87(2)(b). Photo 6 was Det. Rodriguez and § 87(2)(b) identified him as being a "clown" during the incident but stated that he did not commit any misconduct.

§ 87(2)(b) alleged that she sustained injuries on her legs because she was not allowed to walk with a cane. Her injuries consisted of her legs being swollen more than normal. § 87(2)(b) stated that she has a pre-existing condition with her legs but they were more swollen than usual as a result of the incident. She did not seek any medical attention for her injuries.

§ 87(2)(b) was interviewed at the CCRB on October 23, 2007 (encl. 14-14D). She is a § 87(2)(b) year old black female, § 87(2)(b), with brown hair and brown eyes. § 87(2)(b) § 87(2)(b) § 87(2)(b)

On October 5, 2007, at approximately 6:30am, § 87(2)(b) heard banging on the front door. She looked out of her bedroom window and noticed that it was the police. She went towards the front door to open it up but an officer, identified through the investigation as PO Neubia, smashed a glass panel by the front door and cut his arm. § 87(2)(b) remembered two other officers holding the ram, one of which called § 87(2)(b) a "bitch" through the door. The officer was described as a plainclothes Hispanic male, five feet, six inches tall, chubby build, in his late forties with a shaved head and wearing a blue and red jersey. Officers came running up the stairs toward the second floor where she was located. The first officer to get to the second floor was identified as Det. Charles Martello. § 87(2)(b) yelled out to her daughter, § 87(2)(b) to come outside into the hallway. Officers issued them commands to put their hands up and get down on the ground, which they complied with. Det. Martello pulled § 87(2)(b) to the floor by her shirt and put his knee in her back. § 87(2)(b) stated that he lifted her shirt up and § 87(2)(b) was not wearing a bra and he exposed her breasts and laughed. Later on, she stated that he pulled her shirt and § 87(2)(b) told the officer, "You know she doesn't have a bra on." § 87(2)(b) did not mention her breasts being exposed.

The unidentified plainclothes officer pulled § 87(2)(b) out of the bedroom and into the hallway. § 87(2)(b) saw the plainclothes officer punch § 87(2)(b) with a closed fist in her stomach, which made her urinate on herself. § 87(2)(b) was still in the bedroom when this happened. The officers then started to search the

home. They threw § 87(2)(b)'s clothes to the floor and went through drawers. § 87(2) alleged that they damaged a dresser in § 87(2)(b)'s room but she did not see this as she was outside in the hallway during the incident. Det. Martello kicked down § 87(2)(b)'s door because the door was locked, even though § 87(2) told the plainclothes officer that she had a key and could open the door for him. § 87(2)(b) and § 87(2) were taken downstairs. An officer, identified through the investigation as PO O'Malley, escorted § 87(2) and § 87(2)(b) at separate times, to the restroom to change. When § 87(2) was in the bathroom PO O'Malley said, "I'm tired of your shit and I don't have to put up with this." They were placed in a van to be transported to the precinct. § 87(2)(b) was placed in the van and then was removed to a different vehicle. § 87(2) stated that the officers hit § 87(2)(b) with a fire extinguisher and she saw blood on the back of his head, but she did not see him being hit. At some point during the incident, § 87(2) said to a large group of officers that she wanted a list of all of the officers' shield numbers and names and the officers laughed. § 87(2) stated that § 87(2)(b) was present when she asked and § 87(2) remembered three unidentified officers as also being there. She described the first officer as a plainclothes Hispanic male, five feet, six inches tall, chubby build, with a shaved head. The second officer was described as a plainclothes Hispanic male, five feet, seven inches tall, with black hair. The third officer was described as a plainclothes white male, five feet, four inches tall, with a stocky build.

§ 87(2)(b) was interviewed at the CCRB on October 23, 2007 (encl. 13-13C). She is a § 87(2)(b) year old black female, § 87(2)(b), with brown hair and brown eyes. § 87(2)(b) § 87(2)(b)

On October 5, 2007, at approximately 6:30am, she was sleeping at her home when she awoke to banging on the front door. § 87(2)(b)'s aunt, § 87(2)(b) went out into the hallway of the home. The house was very dark because there was no electricity in the home. § 87(2)(b) and § 87(2) also went out into the hallway. PO Neubia was trying to bang the door down and broke a glass panel next to the front door. PO Neubia got cut by the broken glass and said, "Oh shit!" The officers entered the house and said, "Get on the floor!" § 87(2)(b) could see them running up the stairs. All of the women were asking what was happening. § 87(2)(b) said that the women were screaming over the officers, who were also yelling. § 87(2)(b) remembered that everyone was talking. The officers repeated, "Get on the floor!"

As the officers came up the stairs, § 87(2)(b) tried to run back to her bedroom. An officer, identified as Det. Martello, pushed § 87(2)(b) back into her room. § 87(2)(b) later stated that she did not see any officers push § 87(2)(b) or § 87(2)(b). § 87(2)(b) did not know what she was getting arrested for, so she refused to get on the floor. An unidentified officer pushed her to the floor and handcuffed her. She further stated that the officer put pressure on her shoulder and pushed her towards the ground. She described this officer as being a white male wearing a raid helmet. She could not provide any further physical descriptions. She did not sustain any injuries during the incident but days later, her back was hurting. § 87(2)(b) and § 87(2)(b) continued screaming.

An officer said, "These women all screaming. I don't know why they can't shut the fuck up." § 87(2)(b) did not see this officer say that but she heard it. § 87(2)(b) kept the door to her room locked and Det. Martello kicked the door down. The door is still there but the doorframe came off and the lock broke. The officers tried to place all of the women in the bathroom. § 87(2)(b) yelled, "I'm not going in the bathroom." The officers continued to push her and grabbed her arm. § 87(2)(b) yelled, "I'm not resisting arrest, I don't want to go in the bathroom and you already have me in handcuffs." § 87(2)(b) finally went into the bathroom. PO O'Malley brought § 87(2) and § 87(2)(b) from the second floor down to the first floor and had them sit on the steps. § 87(2)(b) was still upstairs and she was screaming, "What's going on?"

The officers brought § 87(2) downstairs and they brought § 87(2)(b) up from the basement. § 87(2)(b) was yelling during the incident that the whole thing was "bullshit" and it was embarrassing because all of the neighbors could see what was happening. § 87(2)(b) was escorted outside into a van and § 87(2) was already there. § 87(2)(b) was placed in the van. § 87(2)(b) had a scratch on his arm and he told an officer that he wanted to go to the hospital. The officer said that he had to wait until he got to the precinct. The officer was described as a white male, five feet, seven inches, with a stocky build, with blonde hair and

blue eyes wearing a plaid shirt and jeans. § 87(2)(b) did not remember what the officer was doing during the incident.

Officers transported them to the 67th Precinct and processed them. § 87(2)(b) was issued a desk appearance ticket and released. When she got home the officers had taken a wooden board and nailed up the door. Drawers in the home were thrown on the kitchen floor and things in the cabinets were on the floor. In § 87(2)(b) room, the officers had put his dresser on top of the mattress and moved a lot of his possessions into the hallway.

§ 87(2)(b) was interviewed at the CCRB on October 23, 2007 (encl. 12-12D). He is a § 87(2)(b) year old black male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b) He is engaged to § 87(2)(b)

On October 23, 2007, at approximately 6:30am, § 87(2)(b) was in his bedroom with § 87(2)(b) § 87(2)(b) and § 87(2)(b) were awake because § 87(2)(b) was getting ready to go to the grocery store. Later on in the interview he stated that they were still awake from the night before. § 87(2)(b) said they were drinking beers and listening to music. § 87(2)(b) had a couple of beers but he did not know how much § 87(2)(b) drank. They heard someone knocking on the glass panel, which is located next to the front door. They then heard the glass break and heard a lot of noise from the officers but § 87(2)(b) could not recall what they were saying. § 87(2)(b) ran out of the bedroom and looked over the staircase to the front door. § 87(2)(b) started screaming, "What are you doing? You're in the wrong house." § 87(2)(b) stayed in the bedroom because he did not know what was happening and he explained that it is hard to move around their bedroom because § 87(2)(b) has a lot of clothing and bags everywhere. The bedroom door does not fully open because there is a shopping cart behind the door so it only opens approximately six inches. The lights were off in the bedroom and the entire house because the electricity had recently been turned off so it was dark in the home. § 87(2)(b) was hysterical and yelling. An unidentified officer partially entered the bedroom and did not see § 87(2)(b) so § 87(2)(b) stayed sitting on the edge of the bed. Approximately two minutes later the officer entered the bedroom again and told § 87(2)(b) to come out into the hallway. § 87(2)(b) never saw the officer's face and could not provide a physical description of this officer because he was wearing a raid uniform.

The officer instructed him to walk down the stairs and sit next to § 87(2)(b) and § 87(2)(b) who were already sitting on the steps. § 87(2)(b) was placed in handcuffs. Once everyone was sitting on the steps the officers had removed the raid gear and were in plainclothes. § 87(2)(b) stated that there was a lot of confusion. § 87(2)(b) did not see any officers hit § 87(2)(b) but he could hear her screaming. Officers told him to get into the van that was parked outside. The officers escorted § 87(2)(b) into the van. An unidentified officer took § 87(2)(b) out of the van and put him in another vehicle because § 87(2)(b) was arguing with the officer but § 87(2)(b) could not remember what was being said. § 87(2)(b) and § 87(2)(b) were placed in the van. § 87(2)(b) was the last person to be put into the van before they were taken to the stationhouse.

§ 87(2)(b) did not say anything to the officers but § 87(2)(b) and § 87(2)(b) were talking to the officers. § 87(2)(b) stated that they were "talking back" but he could not remember exactly what they said. § 87(2)(b) did not hear the officers say anything offensive or use profanity during the incident. When they were at the precinct, § 87(2)(b) could hear § 87(2)(b) yelling from the cell she was in. § 87(2)(b) yelled, "Get me out of here." § 87(2)(b) was strip-searched at the stationhouse. When § 87(2)(b) was released, three days later, he went home and found the officers had ripped the curtains down and the fabric ripped. A drawer was broken but § 87(2)(b) could not describe how it was broken. The glass by the front door was also broken.

§ 87(2)(b) was shown two photo arrays that included Det. Rodriguez, Lt. Burnham, and ten fillers. § 87(2)(b) identified all twelve officers as having been at the incident.

§ 87(2)(b) was interviewed at the CCRB on October 23, 2007 (encl. 15-15E). He is a § 87(2)(b)-year old black male, § 87(2)(b) with black hair and brown

eyes. § 87(2)(b)

On October 5, 2007, at approximately 6:30am, § 87(2)(b) was sleeping in the basement when he heard a bang on the door and then glass smashing. When he heard the noises he started to walk upstairs. It was dark in the home because the electricity was turned off and there was no natural light coming in. He opened the door to the basement at the bottom of the steps and started walking up the stairs. There is a second door at the top of the stairs that is normally closed but had been opened by the officers. § 87(2)(b) got to the top of the steps, saw two officers, and said, "Who are you?" § 87(2)(b) did not make any further steps toward the officers. The two officers rushed over to him with their shields. Since there was no light in the home, § 87(2)(b) could not provide a detailed description of the officers other than to say that they were wearing raid helmets and shields. § 87(2)(b) said, "What's going on?" The officers pushed the top of his chest one time and he fell down the stairs, approximately ten steps. § 87(2)(b) sustained a knot on the top right hand side of his head from the fall. § 87(2)(b) landed at the bottom of the steps, on his back. The officers came over to him and told him, "Don't get up." § 87(2)(b) tried to get up and was on his hands and knees when the officers started to step on him. The officers stepped on his upper back and then stepped on his neck. § 87(2)(b) continued to try and get up and said, "Get off of me, I'm trying to get up." The officers told him, "Don't move, stay down." § 87(2)(b) said, "What's going on?" The officers said, "Shut up!"

The officers stepped on the back of his left leg. § 87(2)(b) had no idea how many times he was stepped on and he could not provide an approximation. A third officer started stepping on him as well. The third officer was described as a plainclothes white male, approximately fifty years old, wearing a black jacket with black hair. The officers continued to tell him to "Stay down there, don't move." § 87(2)(b) stated that they stepped on both of his arms but he could not remember how many times. § 87(2)(b) could not articulate which officers stepped on which arms or any additional details regarding the force. § 87(2)(b) told the officers that he was going to suffer a stroke and one of them said, "Shut the fuck up!" § 87(2)(b) could not provide any physical description of this officer except that he had black hair. § 87(2)(b) sustained a laceration on his arm that was bleeding from being stomped.

During the interview, § 87(2)(b) showed Supervising Investigator Samuel Butfer a scar located on his left elbow that was approximately three inches long. Later in the interview, § 87(2)(b) stated that while the officers were restraining him they were saying that the scar on his elbow was from needle marks and using drugs. § 87(2)(b) alleged that the officers might have hit him with a fire extinguisher that was in the basement. Later in the interview, he stated that his body never touched the fire extinguisher. One of the officers told § 87(2)(b) to pull down his boxers and bend over. § 87(2)(b) asked him, "For what?" The officer responded saying that he wanted to see if there was anything in his rectum. § 87(2)(b) complied and pulled his boxers down. The officers then told him to put his pants on and handcuffed him.

§ 87(2)(b) could not hear any of the females screaming upstairs. § 87(2)(b) was escorted outside into a van. § 87(2)(b) asked an unidentified officer if he could get an ambulance. The officer was described as a plainclothes white male. § 87(2)(b) was taken out of the van and placed inside of a blue Honda and transported to the precinct. § 87(2)(b) did not go to a doctor for his injuries after being released.

Results of Investigation

Officer Statements

The **memo book of Lt. Larry Burnham** noted on October 5, 2007, at 6:05am, he had a tactical meeting at the 67th Precinct (encl. 16-16A). At 6:15am, the officers were enroute to § 87(2)(b) in Brooklyn regarding the search warrant. At 6:30am the search warrant was executed. During the incident a police officer was injured and arrests were made. There was no electricity in the home and no running water. Lt. Burnham provided photographs, to the investigation, of the location prior to the officers searching the address. The photographs depict piles of garbage and possessions all over the floor.

Lt. Larry Burnham was interviewed at the CCRB on February 29, 2008 (encl. 17-17B). He is a § 87(2)(b) -year-old white male, § 87(2)(b) with brown hair

and black eyes. On October 5, 2007, he was working from 4:25am to 1:00pm, as the supervisor during the execution of a search warrant for a major case. He was dressed in plainclothes and assigned to an unmarked vehicle but he did not recall which car.

On October 5, 2007, Lt. Burnham was the supervisor during the execution of a search warrant at § 87(2)(b)

§ 87(2)(e) The home was large, with a basement, ground floor level, and a second story. Lt. Burnham was initially going to have two bunker units enter the location but he altered that plan to add a third bunker unit due to the size of the home. One bunker was to go to the second floor, one to the ground floor, and one to the basement. The officers had to ram the front door open. While they were doing this, glass shattered and PO Neubia was cut by the glass. Lt. Burnham did not hear PO Neubia use profanity after he was cut. Det. Soler led the bunker unit on the ground floor. Det. Martello led the bunker unit on the second floor and Det. Martin led the third bunker unit into the basement under the direction of Sgt. Bowen.

Lt. Burnham stayed with Det. Soler on the ground floor during the entry. He then proceeded up to the second floor, approximately two minutes later, up a narrow stairway with a narrow hallway. The occupants exited their bedrooms and were in the hallway, which created no space for anyone to move. There were three females and one male upstairs. As Lt. Burnham came up the stairway § 87(2)(b) and § 87(2)(b) standing in the hallway, were asked to put their hands behind their back. Lt. Burnham did not recall which officers handcuffed them but no officers threw § 87(2)(b) to the ground while she was being handcuffed. Her shirt was never lifted up, exposing her skin, while she was being handcuffed. Lt. Burnham did not see any officers use force against the females. § 87(2)(b) and § 87(2)(b) were generally compliant with the officers but they were screaming, “You’re not allowed in here.”

The officers attempted to open a bedroom door, but there was so much clutter that they could not get it open. § 87(2)(b) exited this room. The field team attempted to enter this room and finally successfully did. During a secondary search of the room, § 87(2)(b) popped out of the bedroom and asked, “What’s happening?” Lt. Burnham denied that § 87(2)(b) urinated on any of the officers in the second bunker. Lt. Burnham could not recall if any officers had to kick in an upstairs bedroom door. Lt. Burnham never heard § 87(2)(b) inform an officer that she had a key to the door and plead with the officer not to kick the door in. He could not recall if § 87(2)(b) was using a cane during the incident or referenced using a cane.

At no point did Lt. Burnham hear any officers call the females “black bitches.” The females were in their nightgowns and PO O’Malley was called to the location so that these individuals could change. § 87(2)(b) changed upstairs before she was brought downstairs. Lt. Burnham did not see which officer escorted § 87(2)(b) downstairs but he did not hear PO O’Malley use profanity towards § 87(2)(b) at any point. At no point did Lt. Burnham hear or see PO O’Malley attempt to push § 87(2)(b) down the stairs. § 87(2)(b) was never handcuffed while on the second floor. § 87(2)(b) was brought downstairs and sat at the dining room table. The captain showed her the search warrant and explained what was happening. Lt. Burnham was also present at this time and explained to her what was happening and that drug sales were occurring at her house. § 87(2)(b) denied knowing about any drugs and refused to sign the search warrant. At this point, she was placed under arrest and handcuffed.

The third bunker unit that went to the basement placed § 87(2)(b) under arrest. Lt. Burnham was not present while the officers handcuffed § 87(2)(b) but he spoke with him before he was transported to Central Booking and he did not see any injuries on him. At no point did § 87(2)(b) request medical attention from Lt. Burnham. Lt. Burnham had no knowledge of officers hitting § 87(2)(b) with a fire extinguisher or stepping on him. Lt. Burnham did not authorize a strip search of § 87(2)(b) while in the basement. Lt. Burnham could not recall if any officers damaged drapes during the incident. No officers pulled down wood paneling on the walls. Lt. Burnham did not know of any officers refusing to provide their names and shield numbers.

§ 87(2)(b) and § 87(2)(b) and § 87(2)(b) were all taken to the precinct, in a minivan, by the officer assigned to the prisoner van. Lt. Burnham authorized a strip search of § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) He made a notation in the command log stating “evidence” next to the authorization of the strip search. Lt. Burnham explained that they were being strip-searched for evidence in case there was any evidence hidden on their person that the officers would not have found during a normal search. Lt. Burnham did not see these particular individuals make any movements indicative of hiding drugs. He did not recall if any officers informed him of behavior indicative of hiding drugs. The individuals were strip-searched in individual, blocked off cells at the back of the precinct. Prisoners can not see between each cell but officers can see within the cell if they step into the area for prisoners. Lt. Burnham explained that the cells are blocked off from the rest of the precinct. Lt. Burnham did not recall which officer conducted the searches. The females were released with desk appearance tickets.

Det. Hector Rodriguez was interviewed at the CCRB on November 16, 2007 (encl. 18-18A). He is a § 87(2)(b)-year-old Hispanic male, § 87(2)(b), with black hair and brown eyes. On October 5, 2007, he was working from 5:00am until 1:00pm assigned to Brooklyn South Narcotics. He was dressed in plainclothes and assigned to a black Toyota 4-runner.

On October 5, 2007, Det. Rodriguez had obtained a search warrant for the location § 87(2)(e)

§ 87(2)(b) The officers broke down the front door and entered the home. While they were banging the front door with a ram, Det. Neubia slipped and hit a glass panel next to the door. Det. Neubia got glass in his arm and the officers had to call an ambulance for him. Det. Rodriguez confirmed that it was an accident that the glass panel had been broken and the officers never intended to damage it.

There were three units of officers that were each assigned to a different location within the home, the first floor, the second floor, and the basement. All of the officers were dressed in plainclothes and no ESU officers were used during the entry. Det. Rodriguez was assigned to the first floor of the home. Det. Martello, Det. Andreone, and Det. Demarco were assigned to the second floor. On the second floor, three females and one male were placed under arrest. Det. Rodriguez never heard the officers that went to the second floor use any profanity during the incident. When the officers went to the second floor the females began screaming. Det. Rodriguez heard the females cursing, “Fuck you. Get out of my house.” Det. Rodriguez could not see anything that was occurring on the second floor because he remained on the first floor. Det. Rodriguez did not see any officers punch § 87(2)(b) causing her to urinate and vomit. He also did not see any officers kick or punch § 87(2)(b) PO O’Malley was present during the incident because she was assigned to search the female occupants. Det. Rodriguez did not see PO O’Malley search the females because it was done on the second floor and he remained on the first floor. Det. Rodriguez never heard PO O’Malley use profanity during the incident, specifically, “Fuck you, I’ve had enough of your shit.” Det. Rodriguez did not hear any officers call anyone a “black bitch.”

There were no individuals on the first floor when Det. Rodriguez entered. Det. Rodriguez did not place handcuffs on any of the occupants. Det. Rodriguez did not know if the occupants resisted being handcuffed. He did not know exactly which officer handcuffed § 87(2)(b) One individual, § 87(2)(b) was arrested in the basement. The officers conducted a search of the basement and found heroin there. Det. Rodriguez did not see any injuries on any of the individuals and did not hear them complain of any injuries. He did not hear or see any force being used against § 87(2)(b) Det. Rodriguez did not cause any damage to the home and did not see any other officers damage any property. He did not recall any officers removing drapes in the living room. Det. Rodriguez did not hear or see any officers remove wood paneling on the ceiling. Det. Rodriguez further stated that the home was in disrepair. There was no running water in the home and there was garbage all over the home that had piled up. In some areas the garbage was approximately seven feet tall.

The individuals were transported to the 67th Precinct in a black minivan. The driver of the vehicle was Det. Morales and the passenger was Det. Edward Hartrick. While at the stationhouse, one of the females, he could not recall which one, asked him for his name and badge number and he provided the information. Det. Rodriguez did not hear any of the occupants ask any other officers for their names or badge numbers, at the incident location or the stationhouse. The officers had always intended to take the occupants to the 67th Precinct and not the 70th Precinct. Det. Rodriguez denied that it was a mistake that they were taken to

the 67th Precinct. Det. Rodriguez did not hear Lt. Burnham say, “We fucked up and we’re trying to kill time and we’re going to take them to the 67th Precinct.”

The **memo book of Sgt. Dennis Bowen** noted on October 5, 2007, at 5:00am, he had a tactical meeting for a search warrant at § 87(2)(b) (encl. 20-20A). At 6:30am, there were six arrests by Det. Rodriguez. At 7:00am, Sgt. Bowen transported an injured officer to the hospital.

Sgt. Dennis Bowen was interviewed at the CCRB on December 19, 2007 (encl. 21-21A). He is a § 87(2)(b)-year-old white male, § 87(2)(b) with blonde hair and blue eyes. On October 5, 2007, he was working from 5:00am until 1:35pm, assigned to the 70th Precinct as a Narcotics Supervisor. He was dressed in plainclothes and assigned a Blue Sienna.

On October 5, 2007, the officers were conducting a search warrant at § 87(2)(b) in Brooklyn. PO Neubia was assigned to one of the rams and he used it to open the front door of the home. While doing so he hit a glass window which shattered and he sustained injuries from the glass. Sgt. Bowen did not realize at the time that an officer from his team was hurt so he continued into the house going down into the basement. Sgt. Bowen did not hear PO Neubia say “shit” after he had hurt himself. The bunker unit went into the basement. The bunker unit consisted of Sgt. Bowen, Det. Donahue, Det. Martin, and two officers that were assigned as the cuff and toss unit but he did not know the names of these individuals. There was no electricity in the location and it was very dark. The house was disorderly and there was clutter everywhere. When the officers got downstairs, § 87(2)(b) was lying on his bed. § 87(2)(b) was compliant with the officers’ requests. The officers handcuffed § 87(2)(b). None of the officers “stomped” on him while he was in the bed.

Either Det. Donahue or Det. Martin would have been the officers that searched and frisked § 87(2)(b) but Sgt. Bowen did not recall which one. § 87(2)(b) was not strip-searched at the location. Sgt. Bowen did not see a fire extinguisher in the basement nor did any officers ever hit § 87(2)(b) with one. § 87(2)(b) did not complain of his handcuffs being placed on too tight nor did he ask any officers for their names or badge numbers. § 87(2)(b) never mentioned that he might have a stroke and no officer ever responded, “Shut the fuck up.” Sgt. Bowen did not hear any officers say “black bitch” during the incident. Sgt. Bowen did not hear any officers kick a door down. Sgt. Bowen did not know that § 87(2)(b) had urinated on any officers. Sgt. Bowen was informed that PO Neubia had injured himself. Sgt. Bowen and the other officers brought § 87(2)(b) upstairs and placed him in the prisoner van. Sgt. Bowen did not see any injuries on § 87(2)(b) specifically a cut on his arm, nor did § 87(2)(b) ask Sgt. Bowen or any other officers for medical treatment.

Sgt. Bowen took PO Neubia to the hospital. Sgt. Bowen did not interact with any other prisoners during the incident. Sgt. Bowen was at the location for approximately five to ten minutes. He was not present when the officers searched the location and he did not see any property damage done as a result of the search.

Det. William Martin was interviewed at the CCRB on January 30, 2008 (encl. 22-22A). He is a § 87(2)(b)-year-old white male, § 87(2)(b), with brown hair and brown eyes. On October 5, 2007, he was working from 4:27am until 1:00pm, assigned to the execution of a search warrant. He was dressed in plainclothes and assigned to a motor vehicle but he did not recall which. Det. Martin did not have any memo book entries regarding the incident (encl. 23-23B).

On October 5, 2007, he was assigned to the second team bunker unit, which was assigned to enter the basement of the home, with Det. Donahue and Sgt. Bowen. There were additional people assigned to this unit but he did not know their names. Upon entering the front door, Det. Martin did not see Det. Neubia injure himself nor did he hear him use profanity after doing so.

The first officer down the stairs to the basement was Det. Martin, then Det. Donahue, and Sgt. Bowen was the third person in the line. They encountered one male, § 87(2)(b) in the basement. § 87(2)(b) was sleeping on a bed. At no point did the officers encounter § 87(2)(b) on the stairs to the basement and no officers pushed him down. Officers instructed him to show his hands approximately four times. § 87(2)(b) eventually complied and was placed in handcuffs. Det. Martin did not know which officer handcuffed § 87(2)(b).

§ 87(2) but it was not himself, Sgt. Bowen, or Det. Donahue. He did not recall the officers that handcuffed § 87(2)(b) using any force to do so. No officers hit § 87(2)(b) with a fire extinguisher nor did § 87(2)(b) ever make contact with a fire extinguisher.

Det. Martin did not see any injuries on § 87(2)(b) specifically a cut on his arm, nor did he request medical attention from the officers. No officers strip-searched § 87(2)(b) in the basement. While the officers were in the basement they could hear people running around in the home but they did not see what was happening. Det. Martin, Sgt. Bowen, and Det. Donahue left the scene. The Major Case Unit used their personnel to conduct the search of the home. He did not interact with any of the other prisoners.

Det. Martin did not hear any officers use profanity during the incident. Det. Martin did not hear anything about PO O'Malley threatening to throw § 87(2)(b) down the stairs. He did not hear any officers say "black bitches."

The **memo book of Det. Charles Martello** noted on October 5, 2007, at 6:05am, the officers had a tactical meeting regarding the search warrant (encl. 24-24A). At 6:15am, the officers were enroute to the area. At 6:30am, the officers executed the warrant. There were six individuals placed under arrest.

Det. Charles Martello was interviewed at the CCRB on January 22, 2008 (encl. 25-25A). He is a § 87(2)(b)-year-old white male, § 87(2)(b), with grey hair and blue eyes. On October 5, 2007, he was working from 4:27am until 1:00pm, assigned to the execution of a search warrant. He was dressed in plainclothes and did not recall which vehicle he was assigned.

On October 5, 2007, Det. Martello was assigned to the bunker unit that was going to the second floor of the home. Det. Neubia injured himself opening the front door of the home but Det. Martello did not hear him use profanity after this occurred. The officers entered the location and went directly up the stairs with Det. Martello as the first officer up the steps. Det. Andreone was behind him and Det. Demarco was the third officer and he was assigned as the cuff and toss officer. Det. Martello explained that as the officers went up the stairs there were three individuals looking over the banister of the hallway. Det. Martello yelled, "Search warrant! Keep your hands where I can see them." The officers got to the top of the second floor when the individuals started screaming and running. Officers not assigned to the second floor bunker came upstairs when they heard the screaming. Det. Martello reached the top of the stairs and went to a room located to the right. He cleared this room and headed to a second room. As he got to the second room, § 87(2)(b) was standing in front of him. § 87(2)(b) backed into the doorway of the room. Det. Martello stopped and yelled for the cuff and toss officer. A cuff and toss officer pulled § 87(2)(b) away from the front of the door. Det. Martello denied ever pushing § 87(2)(b) down and elbowing or punching her in the stomach. He also denied that she ever urinated on him. No other officers discussed being urinated on. No officers called the females "black bitches."

Det. Martello continued to secure the rest of the floor and encountered two additional women, § 87(2)(b) and § 87(2)(b). Det. Martello denied that § 87(2)(b) was ever thrown to the ground. He explained that the hallway was narrow, approximately three feet wide. If someone was on the ground he would have had to step over them to move through the rooms and he never did that. He called for a cuff and toss officer again. Det. Martello could not recall which officers handcuffed the three females but stated that there were numerous officers assisting in cuff and toss. Det. Martello went back to the first room that § 87(2)(b) had been standing in front of. The door was blocked by bags, garbage, and possessions that had piled up. Det. Martello was finally able to open the door with the assistance of a bunker unit. Det. Andreone entered the room and apprehended § 87(2)(b). There was a door at the end of the hallway that was locked. Det. Martello opened that door with a ram. No individuals offered him a key to open the door and at no point did he respond to them using profanity. After the second floor was secured the search team came up to the floor and Det. Martello went downstairs to remove all of his equipment. After removing his equipment he went back into the home and remained on the ground floor.

Det. Martello never saw § 87(2)(b) using a cane or verbally referencing a cane. Det. Martello never saw or heard PO O'Malley threaten to throw § 87(2)(b) down the stairs. No officers used profanity during the incident. ESU was called to the location at the end of the warrant to secure the front door. Det. Martello

never saw injuries on any of the prisoners. § 87(2)(b) never asked Det. Martello for medical attention. Det. Martello never entered the living room and did not see any damage to wood paneling nor did he see drapes pulled down. The prisoners were taken to the 67th Precinct.

The **memo book of Det. Andreone** noted on October 5, 2007, at 6:05am, the officers were at a tactical meeting (encl. 26-26A). At 6:15am the officers were enroute. At 6:25am the officers were at the search warrant location. At 6:30am six individuals were arrested. At 8:00am the officers were enroute to the 67th Precinct.

Det. Derek Andreone was interviewed at the CCRB on January 23, 2008 (encl. 27-27A). He is a § 87(2)(b)-year-old white male, § 87(2)(b), with brown hair and brown eyes. On October 5, 2007, he was working from 5:00am until 1:00pm, assigned to the execution of a search warrant. He was dressed in plainclothes and assigned to an unmarked blue Dodge station wagon.

On October 5, 2007, Det. Andreone was assigned to the bunker unit going to the second floor with Det. Martello and Det. Demarco. Det. Martello was holding a bunker in one hand and a gun in the other. Det. Andreone's job was to shadow Det. Martello wherever he went, immediately behind him. Det. Andreone actually had his hands locked into Det. Martello's belt.

Det. Andreone did not hear Det. Neubia use profanity after he was injured. The officers went upstairs and saw three females leaning over the hallway banister. Det. Martello yelled, "Show me your hands!" The females started screaming, "We're scared!" Additional officers came up the stairs once they heard the females screaming. The officers first encountered § 87(2)(b) at the first bedroom and she was placed in handcuffs. No officer body-slammed § 87(2)(b). No officer was urinated on during the incident. The officers then placed § 87(2)(b) and § 87(2)(b) under arrest. None of the females resisted being handcuffed. No officer threw § 87(2)(b) to the ground. No officer called them "black bitches." Det. Andreone did not know which officer handcuffed the females. Det. Andreone was present when Det. Martello knocked down a bedroom door. Det. Andreone did not recall any females offering them a key to open the door and he did not hear Det. Martello use profanity during the incident. It took approximately five minutes to secure the second floor. The officers began taking off their equipment in the second-floor hallway but Det. Martello heard a noise coming from § 87(2)(b)'s bedroom and the officers climbed over garbage that was blocking the door. When they got into the room they saw § 87(2)(b) hiding behind the bed. Det. Andreone jumped over the garbage and handcuffed him.

Det. Andreone assisted officers in searching the home. He searched the second floor bedrooms by looking under the bed. The home was full of garbage so his search was not extensive because there was too much garbage everywhere. Det. Andreone did not know of any wood paneling or drapes being pulled down. Det. Andreone did not see § 87(2)(b) using a cane or referencing needing a cane. He never saw PO O'Malley attempt to throw § 87(2)(b) down the stairs. Det. Andreone did not hear anything about § 87(2)(b) being hit with a fire extinguisher. He did not see any injuries on any of the prisoners nor did any prisoners, specifically § 87(2)(b) request medical treatment. Det. Andreone was not involved in transporting any of the prisoners to the precinct.

The **memo book of Det. Jeremy Demarco** noted that on October 5, 2007, he was working on a search warrant (encl. 28-28A).

Det. Jeremy Demarco was interviewed at the CCRB on February 7, 2008 (encl. 29-29A). He is a § 87(2)(b)-year-old white male, § 87(2)(b), with brown hair and blue eyes. On October 5, 2007, he was working from 4:33am until 1:00pm assigned to assist in a search warrant. He was dressed in plainclothes and was not assigned to a motor vehicle but drove to the incident in a blue SUV.

On October 5, 2007, he was assigned to a search warrant that involved multiple bunker units. His bunker unit was to go to the second floor of the home and the unit included Det. Andreone and Det. Martello. Det. Martello was at the front of the line of officers going up the stairs with Det. Andreone second and Det.

Demarco third. Det. Demarco was the cuff and toss officer. Det. Demarco explained that after officers clear a room they yell for “cuff and toss” and it is his job to cuff the individuals inside the room. When the officers were first entering the home, Det. Neubia was assigned to the ram and while ramming the front door open he broke a glass window, injuring himself. Det. Demarco did not see this occur but he heard the glass break. Det. Demarco did not recall if Det. Neubia said “shit” after injuring himself. Det. Demarco noted that the home had no electricity, so it was dark, but he was able to see what was happening during the incident.

The officers went upstairs through a very small hallway. An officer yelled for a cuff and toss officer at the far bedroom, so Det. Demarco ran over to the officer and handcuffed a young black female, § 87(2)(b). The officers continued clearing out the other bedrooms while Det. Demarco stayed with § 87(2)(b). § 87(2)(b) was compliant with being handcuffed and she never resisted. § 87(2)(b) s shirt was never lifted up at this time nor was she ever taken to the ground while being handcuffed. Det. Demarco articulated that there was not enough room in the hallway to place someone on the ground. At no point did any officer say “black bitches,” nor did any officer hit § 87(2)(b) in the stomach and cause her to urinate on the officer. Det. Demarco noted that if any officer was urinated on, the rest of the team would have known. He explained that if an officer is urinated on, they have to go to the hospital and get an exposure number for police records. No officer was taken to the hospital for this reason.

While Det. Demarco was with § 87(2)(b) he saw a closed door, so he yelled to the officers to come to the area. Det. Demarco attempted to open the door, but it was locked, so he kicked it without success. The bunker unit then got to the area and kicked the door down. Det. Demarco denied that § 87(2)(b) offered a key to the door. He noted that he would have preferred to use a key if there had been one. Det. Demarco never saw § 87(2)(b) with a cane during the incident. PO O’Malley came upstairs to guard the women while they changed their clothes. At this point Det. Demarco went outside, to the front yard. At no point did he hear PO O’Malley have a confrontation with § 87(2)(b) about a cane, nor did he hear her use profanity or attempt to push § 87(2)(b) down the stairs.

Det. Demarco did not see any injuries on any of the prisoners. Det. Demarco did not hear anything about officers hitting § 87(2)(b) with a fire extinguisher. He did not see any blood on § 87(2)(b) s arm. § 87(2)(b) never asked Det. Demarco for medical attention. Det. Demarco denied that any officers damaged property within the home. He had no knowledge of wood paneling or drapes being damaged. He explained that the home was filthy with garbage all over the floors. Det. Demarco was not involved in searching the home. He left with his team before the searching of the home occurred.

The **memo book of PO Megan O’Malley** noted that on October 5, 2007, she was working with the Major Case Unit during the execution of a search warrant (encl. 30-30A).

PO Megan O’Malley was interviewed at the CCRB on December 13, 2007 (encl. 31-31A). She is a § 87(2)(b)-year-old white female, § 87(2)(b), with red hair and green eyes. On October 5, 2007, she was working from 4:33am until 1:00pm, assigned to rear security. She was dressed in plainclothes and not assigned to a vehicle.

On October 5, 2007, a search warrant was executed on a three-story brownstone. PO O’Malley was assigned to rear security and was positioned in the backyard. When the officers entered, she heard glass shatter and officers saying, “Police, search warrant!” After the warrant was executed and the prisoners were handcuffed, PO O’Malley went into the home to search the female prisoners. She entered several minutes later and was in the home for approximately fifteen minutes. She assisted in getting the female prisoners dressed in the bathroom. At some point § 87(2)(b) was downstairs and requested to change her clothes. § 87(2)(b) had some difficulty walking, so PO O’Malley told her that she would bring some clothes downstairs for her. § 87(2)(b) insisted on picking out her own clothes, so PO O’Malley escorted her up the stairs, to the second floor. After § 87(2)(b) was dressed, PO O’Malley escorted her down the stairs. At no point did she push her down the stairs. At no point did she use profanity and say, “Mother fucker, you’re going to learn how to walk without that cane.” PO O’Malley noted that she did not even know § 87(2)(b) used a cane. No other officers, specifically Det. Morales, were on the stairs while PO O’Malley was escorting her up or down and at no point did § 87(2)(b) trip or fall while going up and down the stairs.

PO O'Malley never refused to provide her name and shield number during the incident. She did not hear any officers use profanity during the incident nor did she hear any officers say "black bitches" during the incident. She did not see any injuries on any of the prisoners and none of them asked her or any other officers for medical attention. PO O'Malley did not know how the front door was left when officers left the home. PO O'Malley did not see any damage done to wood paneling but she did not enter the living room, where it was located, during the incident.

The **memo book of Det. Joey Morales** noted that he transported four prisoners after the execution of a search warrant (encl. 32-32B).

Det. Joey Morales was interviewed at the CCRB on January 16, 2008 (encl. 33-33A). He is a § 87(2)(b)-year-old Hispanic male, § 87(2)(b), with black hair and brown eyes. On October 5, 2007, he was working from 4:27am until 1:00pm, assigned to the hospital auto during the execution of a search warrant. He was dressed in plainclothes and assigned to a black minivan, Dodge Caravan.

On October 5, 2007, Det. Morales was assigned to be the hospital auto during the execution of the search warrant. His duty was to transport officers who were injured during the search warrant. Det. Morales stayed outside during the execution of the warrant. PO Neubia was not taken to the hospital after he was injured but instead EMS was called to the location. Since Det. Morales did not accompany any officers to the hospital, his vehicle turned into a prisoner van. He transported four prisoners to the 67th precinct. Det. Morales did not recall any other aspects of the incident. Det. Morales did not recall any male prisoner requesting water and an officer responding with profanity. The investigator showed him photographs of the prisoners that he transported and he did not recognize them. Det. Morales denied that § 87(2)(b) requested medical treatment from him or any other officer. Det. Morales also denied seeing PO O'Malley almost push § 87(2)(b) down the steps of the home.

PO Rashaan Neubia was unable to be interviewed as he retired from the NYPD during the investigation. § 87(2)(g)

Police Documents

A **Search Warrant** was filed by Det. Hector Rodriguez on § 87(2)(b) and was granted by Judge § 87(2)(b) for the residence of § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(e)

The **Pre-Execution Plan** regarding the search listed that the officers were searching for narcotics (encl. 35-35A). The **Post-Execution Plan** had diagrams of the first and second floors as well as the basement (encl. 36-36B). It identified Det. Martello, Det. Andreone, and Det. Demarco assigned to bunker two, which corresponded to the 2nd floor of the home. Det. Martin, Det. Donahue, and Det. Okarokoto were assigned to bunker three, which was the basement. Lt. Burnham was the entry supervisor. Det. Rodriguez was assigned to security and PO O'Malley was assigned to rear security. The document noted that § 87(2)(b) was in possession of a heroin glassine, § 87(2)(b) possessed a scale and plastic baggies, and § 87(2)(b) had ammunition.

An **ESU Report** was prepared, 7961 (encl. 37). At 8:45am, ESU was requested at the location to secure the front door after the officers had gained entry.

Property vouchers, § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) were filed regarding the incident (encl. 40-40C). The officers had vouchered assorted papers, ammunition, one scale, plastic baggies, mail with § 87(2)(b)'s name and address, and a glassine of heroin that was associated with § 87(2)(b)

The female **Prisoner Holding Pen Roster** listed § 87(2)(b) and § 87(2)(b) (encl. 41-41B). Each was released with a desk appearance ticket. The male Prisoner Holding Pen Roster listed § 87(2)(b) and § 87(2)(b) being guarded by PO Ramos and transferred to Brooklyn Central Booking at 12:30pm.

The **Command Log** noted that § 87(2)(b) and § 87(2)(b) were each strip-searched for evidence, which was authorized by Lt. Burnham (encl. 42-42A). Their physical and mental condition was listed as apparently normal. § 87(2)(b) and § 87(2)(b) were also listed in the command log as their physical and mental condition being normal. It was noted that they were both searched at the incident location by PO O'Malley.

Civilian CCRB and Criminal Conviction History

§ 87(2)(b) and § 87(2)(b) have not filed any other CCRB complaints (encl. 6-9). § 87(2)(b) has filed another complaint. § 87(2)(g) and § 87(2)(b) were arrested as a result of the search. Each of them was released with a desk appearance ticket, § 87(2)(a) 160.50 [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB History

Det. Martello, a fifteen-year veteran with the NYPD (encl. 4), and PO O'Malley, a six-year veteran (encl. 3), had no substantiated CCRB allegations against them. Lt. Burnham has had four substantiated CCRB allegations including force, discourteous word, question and stop, and frisk. Lt. Burnham was not issued disciplinary action for any of the allegations (encl. 2).

Notice of Claim

As of August 1, 2008, none of the civilians involved in the aforementioned incident had filed a notice of claim with the Comptroller's Office (encl. 48).

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) made numerous allegations against the first officer to reach the second floor. Det. Martello was interviewed at the CCRB and confirmed that he was the first officer up the stairs and he admitted to banging down § 87(2)(b)'s bedroom door. § 87(2)(b) also alleged that he used profanity and used physical force against her and § 87(2)(b). § 87(2)(g) identified Lt. Burnham and PO O'Malley from reading their names off of their nameplates. § 87(2)(b) alleged that PO O'Malley used profanity towards her and attempted to push her down stairs. PO O'Malley denied these allegations. § 87(2)(g). § 87(2)(b) alleged that Lt. Burnham used profanity during the incident, which he denied during his CCRB interview. § 87(2)(g). The occupants of the home made numerous other allegations but could not provide any physical descriptions of these officers as there was no electricity in the home. § 87(2)(g).

Undisputed Facts

It is undisputed that officers entered and searched § 87(2)(b) § 87(2)(b) requiring them to break down the front door and a bedroom door. As a result, § 87(2)(b) and § 87(2)(b) were all placed under arrest.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(e)

§ 87(2)(b) Officers obtained a search warrant and executed an entry and search of the location. Upon entering, PO Neubia slipped and broke a glass panel next to the front door injuring his arm. After injuring his arm he allegedly said, “Oh shit!” The occupants of the location began screaming when they realized police were entering the home. Det. Martello, Det. Andreone, and Det. Demarco ran up the stairs towards the second floor where § 87(2)(b) and § 87(2)(b) were standing.

Det. Martello was the first officer up the stairs § 87(2)(g)

§ 87(2)(b) She initially stated that he punched her in the stomach and spit in her mouth and face. He then began to hit her with his asp. She then testified that he body-slammed her with his elbow and stuck his asp on her right cheek, which caused her to fall. Later in the interview, § 87(2)(b) stated that Det. Martello pushed her with his body and then pressed his asp against her cheek. Even later she changed the details and stated that Det. Martello pushed her with his shield, which made her fall with him falling on top of her and then he punched her in the stomach. § 87(2)(b) who was standing only feet away from § 87(2)(b) testified that she never saw any officers push § 87(2)(b) over. Furthermore, § 87(2)(b) testified that she did not sustain any injuries from the punch. § 87(2)(g)

§ 87(2)(b) further stated that after she was allegedly punched she began to urinate and vomit on herself and Det. Martello. At this point, Det. Martello allegedly stated, “Oh, you fucking bitch, you pissed on me.” Det. Martello denied ever being urinated on and no officers went to the hospital for being urinated on, which would have been NYPD protocol if an officer was exposed to urine. All of the officers testified that at no point did any of the officers acknowledge being urinated and vomited on. § 87(2)(g)

§ 87(2)(b) alleged that an unidentified officer and Det. Martello called the females “black bitches” and stated, “These women are all screaming. I don’t know why they can’t shut the fuck up.” § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that Det. Martello threw § 87(2)(b) to the ground and kicked her. § 87(2)(b) provided testimony regarding the force used against her and she stated that she did not comply with the officers requests for her to get down on the floor. She articulated that Det. Martello approached her and applied pressure to her shoulder, pushing her towards the ground, and then handcuffed her. § 87(2)(g)

§ 87(2)(b) admitted that the door to her bedroom was locked. Det. Martello broke the door down to enter. § 87(2)(b) alleged that officers searched § 87(2)(b) s room and in doing so broke a dresser drawer. None of the residents witnessed officers search § 87(2)(b) s room § 87(2)(g)

None of the officers interviewed admitted to searching § 87(2)(b) s room. PO O’Malley was brought to the second floor to search the females and assist them in changing their clothes. § 87(2)(b) was looking for her glasses and alleged that PO O’Malley

said, "Now you have your fucking glasses." § 87(2)(b) also alleged that PO O'Malley attempted to push her down the stairs, towards the ground floor of the home, and the only reason she did not fall was because Det. Morales caught her. PO O'Malley denied these allegations and Det. Morales denied this ever occurred.

§ 87(2)(g)

At the same time that officers ran up to the second floor numerous officers went down into the basement, including Sgt. Bowen, and Det. Martin. § 87(2)(b) alleged that when he heard noises coming from the first floor he began to walk up the steps. He alleged that officers ran down and pushed him down the steps, causing him to fall ten steps down and land on his back. He alleged that he sustained a knot on his head from the fall. The arrest photograph of § 87(2)(b) shows no signs of bruising, swelling, or lacerations to his face, § 87(2)(g). He then alleged that officers stomped on his legs, arms, back, and neck but he could not articulate how many times. § 87(2)(b) sought no medical treatment after the incident. § 87(2)(b) admitted to not complying with the officers requests for him to stay on the ground. § 87(2)(b) allegedly told the officers that he was going to suffer a stroke and one of them said, "Shut the fuck up!"

§ 87(2)(g)

§ 87(2)(b) alleged that during the incident she asked an officer for his name and badge number and the officer failed to provide the information. § 87(2)(b) was unable to describe this officer except that he was male. § 87(2)(b) also alleged that an officer saw a letter in the kitchen addressed to § 87(2)(b) § 87(2)(b) and the officer responded with profanity upon finding it. § 87(2)(g)

§ 87(2)(b) Officers searched the home. All of the occupants of the home were arrested and placed in vehicles to be transported to the 67th Precinct stationhouse. § 87(2)(g)

All of the family members were transported to the 67th Precinct stationhouse. According to the command log, Lt. Burnham authorized the strip searches of § 87(2)(b) and § 87(2)(b). The command log noted that he conducted the searches in order to recover evidence. Lt. Burnham confirmed that he authorized the strip-searches in order to recover any additional evidence that they could have been keeping on their person. Lt. Burnham confirmed that the searches were done in private cells where no one else would have been able to view. § 87(2)(b) and § 87(2)(b) were released with desk appearance tickets. § 87(2)(g)

§ 87(2)(g)

Allegations that will not be pled

§ 87(2)(g)

Allegation A: Lt. Larry Burnham authorized the entry of § 87(2)(b) § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Therefore it is recommended that **Allegation A** be exonerated.

Allegation B: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon her sex.

Allegation C: At § 87(2)(b) in Brooklyn, Det. Charles Martello spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

Allegation E: At § 87(2)(b) in Brooklyn, Det. Charles Martello used physical force against § 87(2)(b)

Allegation F: At § 87(2)(b) in Brooklyn, Det. Charles Martello used physical force against § 87(2)(b)

Allegation H: At § 87(2)(b) in Brooklyn, PO Megan O'Malley spoke obscenely and/or rudely to § 87(2)(b)

Allegation I: At § 87(2)(b) in Brooklyn, PO Megan O'Malley used physical force against § 87(2)(b)

Allegation J: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)

Allegation K: At § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)

Allegation L: At § 87(2)(b) in Brooklyn, an officer strip-searched § 87(2)(b)

Allegation Q: At § 87(2)(b) in Brooklyn, Lt. Larry Burnham spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations B, C, E, F, H, I, J, K, L, and Q** be unfounded.

Allegation D: At § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

Allegation G: At § 87(2)(b) in Brooklyn, officers damaged the property of § 87(2)(b)

Allegation M: At § 87(2)(b) in Brooklyn, an officer refused to provide his name and shield number to § 87(2)(b).

Allegation N: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon race.

Allegation O: At § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b)'s property.

Allegation P: At § 87(2)(b) in Brooklyn, an officer did not obtain medical treatment for § 87(2)(b).

Allegation R: At § 87(2)(b) in Brooklyn, officers refused to provide their names and shield numbers to § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) made numerous allegations against officers but they were unable to provide any physical descriptions of these officers that would have aided the investigation in identifying them. The interviewed officers denied ever committing any of these allegations. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations D, G, M, N, O, P, and R be closed as officer(s) unidentified.**

Allegation S: At the 67th Precinct stationhouse, Lt. Larry Burnham authorized the strip searches of § 87(2)(b) and § 87(2)(b).

Officers executed a search warrant on the incident location § 87(2)(e).

§ 87(2)(b) Upon executing the warrant they arrested five individuals. While at the stationhouse, Lt. Burnham authorized a strip search of § 87(2)(b) and § 87(2)(b). Lt. Burnham articulated that the search was done in order to recover any evidence that they had on their person and may have been concealing. According to Patrol Guide Procedure 208-05 (encl. 1-1A), "A strip-search will be utilized when the arresting officer reasonably suspects that weapons, contraband or evidence by be concealed upon the person or in the clothing in such a manner that they may not be discovered by previous search methods." § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation S be exonerated.**

Investigator:

Kate Akerly

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: